

1.

CASE #	CASE NAME	HEARING NAME
CVPS2404319	NOGUEZVARGAS VS NERIA	MOTION TO SET ASIDE DEFAULT ON COMPLAINT OF ARTHUR ISRAEL NOGUEZVARGAS BY URIEL NERIA, ANA K. TORRES

Tentative Ruling: Granted.

No opposition filed.

Default entered February 2, 2026 as to moving Defendants Ana K. Torres and Uriel Neria are set aside and vacated.

Moving Defendants to file their proposed answer to the operative complaint within 5 days of this order becoming final.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2600152	DOE VS RIVERSIDE COUNTY	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: Granted.

Court adopts and signs the proposed protective order filed July 23, 2026.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Jane Doe was a patient at one Defendant County of Riverside's medical facilities. She alleges that Defendant failed to preserve records, altered, and failed to keep complete medical records for Plaintiff. She contends she did not authorize anyone to alter, delete, or modify her medical records

The operative FAC, filed March 27, 2026, asserts causes of action for (1) Violation of Mandatory Duty; (2) Violation of the Confidentiality of Medical Information Act; (3) Violation of Patient Confidentiality Protections; and (4) Violation of California Constitutional Right to Privacy.

Trial is not currently set.

Discovery. On June 4, 2026, Defendant served discovery requests on Plaintiff. (Plaintiff Decl., ¶¶2, 9.) On June 5, 2026, Plaintiff served requests for production of documents ("RFPs") seeking County-generated documents relating to Plaintiff's 14-page psychiatric medical journal and "the derivative 12-page altered psychiatric medical journal." (*Id.* at ¶¶3, 9.) Defendant informed Plaintiff that the County required Plaintiff to sign a HIPAA/42 C.F.R. Part 2 Medical Release (the "Release") to comply with state and federal law before production. (*Id.* at ¶¶6, 9.) On June 9, 2026, Plaintiff emailed Defendant a proposed PO and asked, but Defendant never responded to the June 9 email or Plaintiff's subsequent follow up on June 15, 2026. (*Id.* at ¶¶4-5, 15.)

Motions. Plaintiff now moves for a protective order ("PO") governing the handling, disclosure, and use of Plaintiff's mental-health materials, including her original copyrighted 14-page psychiatric medical journal and the copyrighted derivative 12-page altered medical journal. Plaintiff argues Defendant did not "identify any specific discovery request that would require access to [Plaintiff's] medical records for the County to produce its own internal documents." (Plaintiff Decl., ¶9.)